

26VECV03369 26VECV03369

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-31

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Case Number: 26VECV03369 Hearing Date: August 31, 2026 Dept: T

26VECV03369 Khairallah v Humayun

Ex parte application to allow a Second Amended Complaint: Denied. There is no urgency. There is no declaration in compliance with CRC 3.1202(c): "Affirmative factual showing required -- An applicant must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte."

A noticed motion is required. There must be compliance with California Rules of Court, Rule 3.1324:

"Rule 3.1324. Amended pleadings and amendments to pleadings

(a) Contents of motion

A motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended allegations were discovered; and

(4) The reasons why the request for amendment was not made earlier.

(c) Form of amendment

The court may deem a motion to file an amendment to a pleading to be a motion to file an amended pleading and require the filing of the entire previous pleading with the approved amendments incorporated into it."